

Stereo.HCJDA-38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

W.P. No.18754 of 2021

Israr Hussain
v.
Imtiaz Ahmad Sheikh, etc.

J U D G M E N T

Date of Hearing	29.9.2021
Petitioner by	Muhammad Tahir Chaudhry, Advocate
Respondent by	M. Riaz Malik, Advocate for respondent No.1

Rasaal Hasan Syed, J. This Constitutional Petition arises from orders dated 14.10.2020 and 17.2.2021 whereby the application for the eviction of petitioner was allowed and appeal thereagainst was dismissed.

2. Facts with precision are that respondent No.1/Imtiaz Ahmad Sheikh filed an application under section 19 of *the Punjab Rented Premises Act, 2009* (the “**Act**”) seeking eviction of the petitioner from House no. 54 at Eden Avenue Extension, Defence Road, Lahore (the “**premises**”) claiming that premises was rented out on 10.2.2010; on 11.1.2012 a new Rent Agreement was executed by the petitioner, the period of tenancy was fixed as 11 months; a sum of Rs. 52,000/- was paid as security; rental of the premises was fixed at Rs. 30,000/- with 10% annual increase and that the rent agreement could be terminated by one month’s notice; the petitioner was served with one month’s notice in September, 2018 for the vacation of the premises but on his request to make alternate arrangement a period of five months

was allowed for vacation of premises; and that petitioner thereafter started raising false plea of oral extension of lease and payment of alleged security amount; and that the petitioner was liable to eviction on the ground of violation of the terms and conditions of the rent agreement and alteration in the premises without permission. Petitioner filed an application under section 22 of the Act for leave to contest, asserting that the application was mala fide; the matter in issue could only be decided after evidence; the ejectment petition was not maintainable in law and on facts; respondent No.1 had no cause of action; respondent No. 1 did not approach the Tribunal with clean hands and that a suit for permanent injunction was filed by the petitioner wherein respondent No. 1 committed not to dispossess the petitioner illegally or unlawfully and that there was no violation of the terms and conditions of the lease agreement. The tenancy being admitted, the learned Special Judge (Rent) after considering the submissions pro and contra, did not find any valid reason or plausible ground to allow leave to contest. In result the leave application was dismissed and the petitioner was directed to vacate the premises vide eviction order dated 14.10.2020. Appeal filed by the petitioner thereagainst was dismissed on 17.2.2021 by the learned Addl. District Judge, Lahore.

3. Heard. Record perused.

4. Main ground taken by learned counsel for the petitioner to challenge the impugned order was that the respondent had not claimed eviction on the ground of expiry of lease or default in payment of rent specifically and that the order passed on these two counts was legally untenable and that the question of impairment or alteration of the property being a factual controversy could be resolved only after

evidence for which leave to contest should have been granted and matter ought to have been resolved on the basis of evidence.

5. Perusal of the ejectment application manifestly reveals that the case of the respondent was that the premises was given on rental basis on 10.2.2010; on expiry of two years, a new rent agreement dated 11.1.2012 was executed by the petitioner on the terms and conditions on which the tenancy was renewed for 11 months; a sum of Rs. 52,000/- was paid as security, the monthly rental was agreed as Rs.30,000/- with 10% annual increase; the rent agreement could be terminated by notice of one month and that either party could get out of the agreement with written mandatory notice of one month and that in the beginning of year 2018, the petitioner started making false claim of extension of lease till 2025 and payment of security amount; the respondent took serious note of it and decided to terminate the tenancy, consequently in the month of September 2018 the petitioner was served with notice of month to vacate the rented premises on which the petitioner requested for time to make alternate arrangement; which request was acceded to and a period of five months for the vacation of petitioner was allowed and that the petitioner instead of abiding by his commitment instituted a suit for permanent injunction against the respondent notwithstanding that it was a rent matter and the civil suit was not maintainable. In this backdrop, the respondent solicited eviction of the petitioner on number of grounds. In his Application for Leave to contest, the petitioner while attending the eviction application on merits, admitted paras 3 and 4 of the ejectment application, which were to the effect that the respondent was lawful owner of the property and at the request of petitioner the premises was rented out in his

favour on 10.2.2010; the lease was extended after two years for a period of 11 months, vide agreement dated 11.1.2012. Petitioner also admitted para 5 of the eviction petition to the extent of tenancy and claimed oral extension thereof. The allegations of violation of lease were controverted.

6. With a view to attend to the objection raised by the petitioner, it will be relevant to reproduce some of the grounds of eviction petition which are as under:

- “(a). That the applicant submits that the respondent has violated grossly with the terms and conditions of the rent agreement, hence as per rent laws, presently in force in the Province of Punjab, the respondent be directed to vacate the rented premises forthwith and hand over its possession to the applicant.
- (b). That the respondent has violated the terms and conditions of the rent agreement and the provisions of Act 2009 by doing alteration in the rented premises without the permission of the applicant, so the respondent is liable to be evicted from the rented premises.”

It is evident that amongst other grounds the reasons on which the eviction was solicited was the breach of terms and conditions of the rent agreement and as per rent law in vogue a request was made that the petitioner be directed to handover the vacant possession of the rented premises.

7. The lease agreement dated 18.1.2012, copy whereof the petitioner has himself appended with this petition, shows that the date of commencement of tenancy given therein is 01.2.2012, the period of lease as 11 months which was renewable with mutual consent of the parties, the security amount was Rs. 52,000/-, the monthly rental was fixed as Rs.30,000/- and that the rent was stipulated to be paid in advance. Clause 12 of the rent agreement reads as follows:

- “12. That the lessee shall deliver peaceful and vacant possession of the premises after the expiry of lease period in good and acceptable position/condition”

Bare reading of the above clause in the agreement leaves little doubt that one of the commitments made therein was to vacate the premises and deliver it to the landlord on the expiry of lease period which was obviously 11 months. Section 13 of the Act provides for the obligation of a tenant as under:

- “(1). Subject to tenancy agreement, a tenant shall : -
(a) ...
(b) ...
(c) ...
(d) hand over the vacant possession of the premises to the landlord on the determination of tenancy”.

(emphasis supplied)

Reference can be made to the case of “Rana Abdul Hameed Talib v. Additional District Judge, Lahore and others” (PLD 2013 SC 775) wherein the provisions of sections 12 and 13 of the then newly enacted Act were examined and it was observed by the Supreme Court of Pakistan as follows:

“9... Before proceeding further with the matter, it may be expedient to state here, that sections 12 and 13 of the Act, 2009, also have an important bearing and nexus to the proposition of this case, which sections define and prescribe the statutory obligations of the landlord and a tenant towards each other, including for example, the duty of the landlord to provide the copy of the tenancy agreement to the tenant [see section 12(1)(a)] and the obligation of the tenant to hand over vacant possession of the premises to the landlord on the determination (expiry) of tenancy [see section 13(1)(d)]. Besides, these two provisions also envisage the remedies available to both the above named (*landlord and tenant*), if there is any breach of such obligation on either of their parts. In this context reference can also be made to another important provision of the Act, 2009 i.e. section 10, which provides that no agreement to sell etc., after the execution of the tenancy agreement (emphasis supplied) between the parties (*landlord and tenant*) shall affect, the relationship of tenancy, unless the tenancy is revoked by a written agreement entered before the Sub Registrar in accordance with the provisions of section 5 of the Act, 2009. Moreover, in section 15 of the Act, 2009 which prescribes the grounds for the eviction of a tenant, the expiry of period is now a new addition, which is one of the grounds of eviction, and this is in sharp contrast to the earlier law (*1959 Ordinance*), because the expiry of period of tenancy was irrelevant, as the express provisions of section 13 thereof, provided that no tenant shall

be evicted except as per the provisions of the said section (13 *ibid*) and the expiry of tenancy period was not one of the grounds stipulated therein”.

8. It is discernible from ground “(a)” in the eviction petition that ejectment was solicited amongst others on the ground of violation of terms and conditions of the rent agreement and the rent laws in force. Ground “(a)” of paragraph “7” of the eviction petition; which is to be considered along with paragraph “6” thereof wherein the respondent landlord specifically averred that in the year 2018 the petitioner started making incorrect claims as to the alleged renewal of tenancy and payment of security amount; and in that backdrop the respondent considered the termination of tenancy agreement, served the petitioner with a notice in September 2018 calling upon him to vacate the premises within one month; and at the request of the petitioner a time of five months was allowed to make alternate arrangements and to deliver vacant possession but instead of honoring his commitment the petitioner embroiled the respondent in frivolous litigation through the civil suit which according to respondent was not maintainable. Paragraph “7” of the eviction petition clearly indicates that the eviction of the petitioner was claimed on the grounds as incorporated in subparagraphs “(a)” to “(e)” of paragraph “7” of the ejectment application wherein violation of the terms and conditions of the lease agreement as also the Act has been specifically mentioned as one of the foundational reasons for eviction. Under section 13(d) of the Act the tenant is under obligation to deliver vacant possession of the rented premises on the expiry of lease. Similarly as per clause 12 of the lease agreement, the petitioner was under obligation to deliver vacant possession of the premises on expiry of lease. The period of lease in this case being 11 months, which

undeniably stood expired, the continuation of possession on part of the petitioner was a clear violation of section 13(d) of the Act and also clause 12 of the lease agreement. Section 15(a) provides for the right of eviction on the expiry of lease while its clause (d) entails eviction of tenant due to violation of an obligation under section 13 of the Act. In “Waqar Zafar Bakhtawari and 6 others v. Haji Mazhar Hussain Shah and others” (PLD 2018 SC 81) while considering the infringement of terms and conditions of lease as a ground for eviction under section 17(2)(ii)(b) of the Islamabad Rent Restriction Ordinance, 2001, read with section 6 thereof, it was observed to the effect that as per said section 6, tenancy determines at expiry of terms of tenancy and if thereafter the tenant holds on to such property without the consent of the landlord, it shall be a clear violation and infringement of the conditions of tenancy on which the property was held and this in itself constituted a ground for eviction. In the instant case too, by failing to deliver the vacant possession on the expiry of lease, the petitioner was continuously violating the terms and conditions of the lease agreement and also the law, therefore, the forums below correctly allowed his eviction in the peculiar circumstances of the case.

9. As regards the defense raised by the petitioner that the tenancy was verbally renewed till 2025 and that additional security amount was paid for this purpose, suffice it to observe that no receipt or document was produced on record in support of the plea of payment of additional security nor any written agreement of renewal of tenancy was adduced. Admittedly, the lease agreement was unregistered which automatically lapsed on 11 months. The creation of lease or renewal thereof for more than one year could not be accepted without a registered document which, of course, was not the

case at hand. Reference can be made to “Habib Bank Limited v. Dr. Munawar Ali Siddiqui” (1991 SCMR 1185), “Government of Sind through Secretary and Director General, Excise and Taxation and another v. Muhammad Shafi and others” (PLD 2015 SC 380) and “Mirza Book Agency through Managing Partner and others v. Additional District Judge, Lahore and others” (2013 SCMR 1520) where it was observed to the effect that the lease for a period of more than 11 months could not be created except through a registered document. This being so, the plea raised by the petitioner being devoid of any legal substance was rightly repelled.

10. As to the objection qua the ground of default, the same also was not tenable. In the instant case, the learned Addl. District Judge, took note of the fact that while admitting the appeal for regular hearing, it was directed that the petitioner should deposit monthly rent with annual increase on or before 10th of each month regularly but the petitioner deposited the rent after 10th of each month which was evident from the receipts and this was not only a violation of the agreement of tenancy but also the order dated 28.10.2020 of the appellate court and that the petitioner could not avoid the consequences of default committed in payment of rent that fortified proof of, and fed into, the ground of violation of the tenancy agreement as well. It is thus obvious that the question pertaining to payment of rent was only considered for the purposes of observing the violation of the order of the court, the terms of agreement of tenancy and also the violation of law. The objection raised by the petitioner is, therefore, devoid of any legal substance.

11. Even otherwise, considering the facts as emerged on record, where the expiry of lease was evident, the learned

Special Judge (Rent) had the inherent jurisdiction to mould the relief according to altered circumstances in the larger interest of justice. Reference can be made to the case of “Mst. Amina Begum and others v. Mehar Ghulam Dastagir” (PLD 1978 SC 220).

12. For the reasons hereinabove, this Constitutional petition is without substance, which is accordingly **dismissed**. The petitioner is, however, permitted a period of **30 days** from the date of this Order, to deliver vacant possession of the premises to respondent No.1.

(RASAAL HASAN SYED)
JUDGE

Announced in open Court on **08.10.2021**

JUDGE

APPROVED FOR REPORTING

JUDGE